

Yamuna W/O Sunil Ramshanker Rathod D/O ... vs Sunil Ramshanker Rathod on 4 October, 2021

Author: J.B.Pardiwala

Bench: J.B.Pardiwala, Vaibhavi D. Nanavati

C/FA/3316/2018

ORDER DATED: 04/10/2021

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/FIRST APPEAL NO. 3316 of 2018

With

CIVIL APPLICATION (FOR DIRECTION) NO. 1 of 2018

In R/FIRST APPEAL NO. 3316 of 2018

With

CIVIL APPLICATION (FOR STAY) NO. 3 of 2018

In R/FIRST APPEAL NO. 3316 of 2018

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YAMUNA W/O SUNIL RAMSHANKER RATHOD D/O RAJESH RATHOD

Versus

SUNIL RAMSHANKER RATHOD

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Appearance:

MR. AUM M KOTWAL(7320) for the Appellant(s) No. 1

NANAVATI AND CO.(7105) for the Defendant(s) No. 1

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CORAM:HONOURABLE MR. JUSTICE J.B.PARDIWALA

and

HONOURABLE MS. JUSTICE VAIBHAVI D. NANAVATI

Date : 04/10/2021

ORAL ORDER

(PER : HONOURABLE MR. JUSTICE J.B.PARDIWALA)

1. This First Appeal is at the instance of the original defendant (wife) of a Family Suit and is directed against the judgment and decree of divorce passed by the Family Court, Ahmedabad dated 03.07.2018 in the Family Suit No.894 of 2015.

2. We take notice of the fact that family suit came to be instituted by the respondent herein original plaintiff/ husband praying for a decree of divorce under Section 13 (1) of the Hindu Marriage Act

(for short "the Act"). The husband succeeded in obtaining the decree of divorce on the grounds of cruelty etc. The operative part of the order reads thus:-

[1] The petition is hereby ordered to be allowed.

C/FA/3316/2018 ORDER DATED: 04/10/2021 [2] It is ordered that the marriage solemnized between petitioner and respondent is hereby dissolved with effect from the date of the decree on the ground of cruelty under Section 13 (1) (i-a) of the Hindu Marriage Act, 1955.

[3] Decree be drawn accordingly.

[4] No order as to cost.

3. While admitting the First Appeal, a Coordinate Bench of this Court passed the following order dated 24.08.2018:-

"1. Mr. D. N. Chhatrapati, learned advocate for the appellant invited the attention of the court to section 5 of the Hindu Marriage Act, 1955 and more particularly, to clause (ii)(c) thereof to submit that the words "or epilepsy" have been deleted with effect from 29.12.1999. Referring to section 13 of the said Act, it was pointed out that the fact regarding the husband or the wife suffering from epilepsy is not a valid ground for divorce as contemplated under the said section. It was submitted that the trial court has been influenced by the fact that the appellant was suffering from epilepsy for coming to the conclusion that she has perpetrated cruelty upon the respondent and has, accordingly, granted a decree for divorce on the ground of cruelty under section 13(1)(ia) of the said Act.

2. Having gone through the impugned judgment and order and considering the submissions advanced by the learned advocate for the appellant, the court is of the view that the matter requires consideration. Hence, ADMIT."

4. After the appeal came to be admitted, many attempts were made by this Court to convince the parties to arrive at some amicable settlement. The following order was passed on 11.06.2021:-

"Both learned counsel submit that looking to the nature of present matrimonial dispute, the matter may be referred to the Mediation Center of this Court for exploring the possibility of mutual settlement between the parties, as the present appeal is directed against the divorce decree which has been passed in favour of respondent-husband -Sunil Ramshanker Rathod.

"The parties may appear before the trained Mediator in the first C/FA/3316/2018 ORDER DATED: 04/10/2021 instance on 20.6.2021 at 11.00 a.m. A copy of this order will be sent to the Member-Secretary, Gujarat State Legal Service Authority

immediately who may appoint a trained mediator in the matter, before whom, the meeting will be held on 20.6.2021 and a further period of 4 weeks is allowed to the trained mediator to hold further such meetings with the parties or related person as may be necessary to explore the possibility of such mutual settlement between the parties.

A Report of the Mediation will be sent to this Court after the said period of 4 weeks. List this matter again before this Court on 11th August, 2021.

Contact Details of Partner/Counsels :-

Mr. Aum M. Kotwal, learned Counsel for the Appellant-wife Mobile No. 9724936307.

Yamuna/Jamuna Mobile No. :- 9574451807 Email Id:- jamunarathor46@gmail.com
Mr. Maulik Nanavaty, Id. Counsel for the Opponent -husband Mobile No. 9998001616 Sunil Ramshanker Rathod Mobile No. :-9427623296 Email Id:- maulik@nanavatico.com."

5. Thereafter, the following order was passed on 11.08.2021.

"Both learned counsels will take instructions about mutual consent award and permanent alimony amount to be taken. List again on 24.08.2021."

6. The last order that came to be passed on 24.08.2021, which reads as under:-

"Both learned counsels pray for some more time as they submit that they may advise the parties to arrive at mediated settlement using their good offices. List on 08.09.2021."

7. The parties are present here before us. We are informed that the parties have been able to arrive at an amicable settlement. The settlement arrived at between the parties has been reduced into writing duly signed and notarized. Mr. Aum Kotwal, the learned counsel appearing for the wife has also put his signature on the C/FA/3316/2018 ORDER DATED: 04/10/2021 terms of the settlement, at the same time, Ms. Manvi Damle, the learned counsel appearing for the husband has also put her signature on the terms of the settlement. The documents containing the terms of the settlement is ordered to be taken on record. The same shall be kept with the record of this case.

8. In view of the above developments, we dispose of the first appeal by substituting the impugned judgment and decree with the terms of the settlement arrived at between the parties.

9. Registry shall draw the final decree in terms of the settlement between the parties reduced into writing and ordered to be taken on record.

10. We direct the parties to abide by the terms and conditions.

11. With the aforesaid, the First Appeal as well as the connected Civil Applications stand disposed of.
12. Post this First Appeal after 10 weeks to report compliance of the terms of the settlement.
13. The Registry shall draw the decree in terms of the settlement at the earliest.
14. Matter is to be notified after 10 weeks only to ensure that the parties have abided by the terms of the settlement.

(J. B. PARDIWALA, J) (VAIBHAVI D. NANAVATI, J) VARSHA DESAI